Gmail Dongcheng WANG <wangdongcheng@gmail.com>

Follow-up on Tuition-Fee Exemption Eligiblity - Clarification of “Not Eligible”

Mifsud Deborah at MES <deborah.d.mifsud@gov.mt> Tue, Oct 13, 2026 at 11:09 AM
To: Dongcheng WANG <wangdongcheng@gmail.com>
Cc: Borg Vincent at MES <vincent.e.borg@gov.mt>, Cilia Sheree Ann at MES <sheree-ann.cilia@gov.mt>

Good morning,

Thank you for your email.

Kindly note that, in line with the direction provided by the Ombudsman, applicants holding MRVP/MPRP status may be considered for exemption only in respect of compulsory education, provided that the parent or legal guardian holds a valid Jobsplus work permit and satisfies the applicable conditions.

However, once the student progresses beyond compulsory education, namely after Form 5, applicants under the MRVP/MPRP framework are not eligible for tuition fee exemptions for post-secondary, further, or tertiary education. Consequently, applications relating to studies beyond compulsory education do not qualify for exemption under the current policy framework.

In this context, the term "not eligible" means that applicants falling within the MRVP/MPRP category for post-secondary or tertiary education do not meet the eligibility criteria for an exemption and, therefore, cannot be granted a tuition fee exemption for such courses.

We trust that this clarifies your position.

Kind regards

Exemption from Fees at State Education
People Management Department

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MINISTRY FOR EDUCATION AND SPORT

GREAT SIEGE ROAD, FLORIANA, MALTA

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From: Dongcheng WANG <wangdongcheng@gmail.com>
Sent: Tuesday, 13 October 2026 08:35
To: Education at MES <education.mes@gov.mt>; Exemptions Board at MES <exemptionsboard.mes@gov.mt>
Cc: Mifsud Deborah at MES <deborah.d.mifsud@gov.mt>; Borg Vincent at MES <vincent.e.borg@gov.mt>; Spring LIU <ahspring.liu@gmail.com>; 王惜 Teresa <trswang2mt@gmail.com>; Client Relations at Residency Malta <clientrelations.residencymalta@gov.mt>; Dongcheng WANG (Paul) <wangdongcheng@gmail.com>
Subject: Follow-up on Tuition-Fee Exemption Eligiblity - Clarification of “Not Eligible”

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Dear Exemption Board and Ministry for Education,

I am following up on my formal request for reconsideration and legal review sent on 6/Oct/2026.

Your original refusal stated that:

“as per our Policy, post-secondary and tertiary education under the MRVA/MPRP/MRVP is not eligible for exemption.”

I respectfully ask for a clear and unambiguous clarification of what **“not eligible”** means in this context:

- **not eligible to apply at all;** or
- **eligible to apply and to receive substantive consideration, but not eligible for exemption after that assessment only for the year 2026?**

This distinction should, in my view, have been made clear in the original refusal. We are entitled to understand our actual legal and administrative position, particularly because it directly affects whether we should **continue submitting applications next year and in future years**, and whether there remains any genuine possibility of receiving a tuition-fee exemption.

If applicants in our category are technically permitted to submit an application but, in practice, can never be granted an exemption, then I respectfully ask that this be stated plainly rather than leaving the meaning of “eligible to apply” ambiguous.

I would therefore appreciate a **direct answer** to this specific point.

Many thanks for your attention.

Yours faithfully,

Dongcheng (Paul) Wang

On Tue, Oct 6, 2026 at 3:02 PM Dongcheng WANG <wangdongcheng@gmail.com> wrote:

> Dear Exemption Board and Ministry for Education,
>
> I, Dongcheng WANG (ID 482971A, MPRP Holder), hereby submit this formal request for reconsideration and legal review of the decisions refusing the tuition-fee exemption applications submitted on behalf of my wife, Yingchun LIU (ID 482968A), and my daughter, Xi WANG (ID 482972A).
>
> For the avoidance of doubt, the argument set out below **does not rely on our MPRP residence status as the source of any entitlement to free education**. It relies solely on **my separate status as a third-country national worker lawfully residing and working in Malta**.
>
> ## Statement of facts:
>
> - Last year, I submitted two applications for tuition-fee exemptions:
>   - Form EST-036134-OOM6M for my wife, Yingchun LIU, to study at MCAST, was submitted on 26 September and approved on 13 October 2025.
>   - Form EST-036180-8FYIW for my daughter, Xi WANG, to study at GCHSS, was submitted on 28 September and approved on 10 October 2025.
> - This year, I likewise submitted two applications:
>   - Form EST-058986-80SLX for Yingchun LIU was submitted on 20 September 2026 and refused on 2 October 2026, with the refusal stating that *as per our Policy, post-secondary and tertiary education under the MRVA/MPRP/MRVP is not eligible for exemption*.

- Form EST-058985-V8OF3 for Xi WANG was submitted on 20 September 2026 and refused on 22 September 2026, with the same reason.

Between the 2025 and 2026 applications, the material residence, employment and family circumstances relevant to the exemption remained unchanged. Our residence status remained the same, my employment status remained the same, and the applications concerned the same educational institutions.

Position

An MPRP beneficiary who is lawfully resident in Malta and separately authorised to work appears to fall within the category contemplated by **Regulation 3(b) of `S.L. 217.17`**, subject to the statutory conditions set out therein.

If the Board considers that an MPRP residence permit combined with a valid Jobsplus Employment Licence does not satisfy the conditions of Regulation 3(b), I respectfully request that the precise legal basis for that conclusion be identified.

Regulation 23 then provides, subject to the conditions and limitations stated therein, for equal treatment of the relevant third-country workers with Maltese nationals in, among other matters, education and vocational training.

For university and post-secondary education, the same legislation allows specific prerequisites concerning tuition fees to be imposed by national legislation.

The decisive question is therefore not whether MPRP itself grants free education. It plainly does not.

The decisive question is whether Maltese national legislation contains any provision that lawfully permits a TCN worker holding MPRP residence status and a valid Employment Licence to be **excluded from eligibility to apply for, or to be considered for, a tuition-fee exemption** solely because the underlying residence permit derives from MPRP rather than from the Single Permit procedure.

This submission concerns eligibility to apply and to receive substantive consideration. It does not assert an automatic entitlement to approval.

If the Board’s position is that MPRP beneficiaries with valid Employment Licences are formally eligible to apply, and that each refusal results from an individual exercise of discretion, then the actual decision-making process becomes highly relevant. Where applications are refused within a matter of minutes, using the same categorical reason, and materially comparable applicants appear to receive the same outcome, it is difficult to reconcile that practice with a genuine case-by-case substantive assessment.

In those circumstances, the distinction between “eligible to apply” and “not eligible for exemption” risks becoming merely formal, while the purported exercise of discretion risks functioning in practice as a categorical exclusion. If the outcome is effectively predetermined by residence category, then describing the process as one of individual discretion does not answer the underlying concern.

In that situation, the material question remains the same: what statutory provision lawfully renders that entire category substantively ineligible, irrespective of the individual merits of the application?

I do not make this submission lightly, and I would prefer to be shown that my conclusion is wrong.

However, on the basis of the legislation, published Government information, the Board’s own policies and the previous administrative decisions available to me, I am presently led to the following conclusion.

To date, no such statutory provision has been brought to my attention.

Instead, the exclusion appears to arise from the Board’s administrative policy, namely ***the Policy and Rules of Procedure for the Exemption of Fees of State Education Institutions*** (Revised June 2023, hereinafter referred to as the `Policy`).
However, `Rule` 4.6(e) itself requires an important distinction to be made.
I fully accept the statement in `Rule` 4.6(e) that tertiary education is not covered under the MPRP programmes. **I do not rely on MPRP as the source of any entitlement to tertiary education.** However, that is not the legal basis on which this request is made. `Rule` 4.6(e) addresses the treatment available under the MPRP residence programmes. It does not expressly address the separate question of whether **an MPRP beneficiary who is independently authorised to work in Malta** may qualify for consideration in his capacity as a third-country worker under `S.L. 217.17`.
In other words, the proposition that *tertiary education is not covered under MPRP* does not, by itself, establish the separate proposition that **an MPRP beneficiary who also qualifies as a third-country worker is categorically ineligible to apply for, or to receive substantive consideration for, a tuition-fee exemption under the separate worker-based framework established by `S.L. 217.17`.**

That additional conclusion requires its own legal basis. Accordingly, even if Rule 4.6(e) is applied fully according to its wording, it does not by itself resolve the issue raised in this submission: whether my separate legal status as a lawfully resident and lawfully employed third-country worker brings me within the framework contemplated by Regulation 3(b) and Regulation 23 of S.L. 217.17.
If the Board considers that Rule 4.6(e) also operates to exclude that separate worker-based route, I respectfully request that the statutory provision establishing or authorising such an exclusion be identified.

This distinction is fundamental. **I am not seeking tertiary education benefits by virtue of MPRP**. I am asking to be considered on the basis of my separate status as a third-country worker.

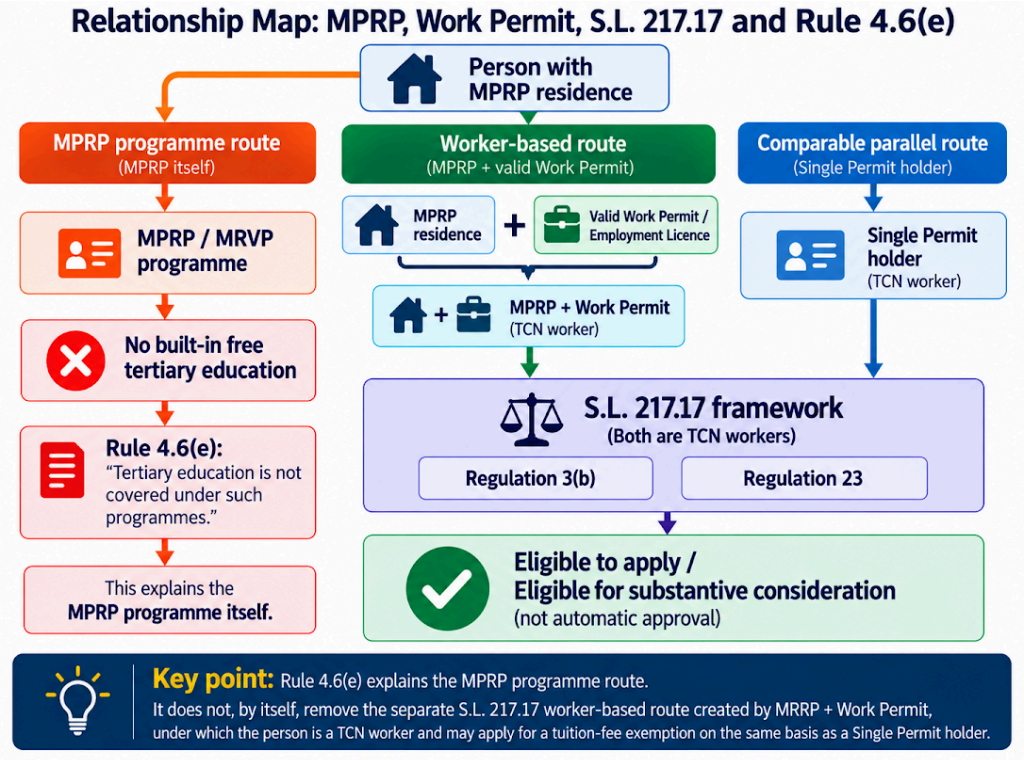
Whether Rule 4.6(e) is characterised merely as guidance governing the Minister’s exercise of discretion, or whether it is relied upon as constituting, reflecting or implementing the “specific prerequisites in national legislation” permitted by Regulation 23(c) of S.L. 217.17, **the statutory basis for excluding that separate worker-based route should in either case be identified**.

A policy provision stating that tertiary education is not covered under the MPRP programmes should not, without further statutory authority, be treated as self-sufficient legal authority for the broader proposition that an MPRP beneficiary who separately qualifies as a lawfully resident third-country worker is categorically ineligible even to apply for, or receive substantive consideration for, a tuition-fee exemption.

Unless such a legal basis can be identified, I can only conclude that **materially comparable third-country workers are being treated differently** on the basis of the form or origin of their residence status, notwithstanding that the workers concerned are lawfully resident and lawfully employed in Malta.

I therefore consider the distinction to be legally questionable and potentially inconsistent with the applicable equal-treatment framework. Unless an objective and lawful justification is identified, it may also amount to discriminatory differential treatment.

This inconsistency is particularly difficult to reconcile with good administration because my two materially comparable applications were **approved in October 2025**, after the relevant policy had already been introduced, whereas the corresponding 2026 applications were refused almost immediately and, more significantly, were **treated as categorically ineligible to apply**.



Summary

1. I am not claiming an automatic or unconditional right to a tuition-fee exemption.
2. **I am asserting something narrower but fundamental: if the State treats two categories of legally resident third-country workers differently, it must be able to identify the lawful basis for doing so.**
    i. If that basis exists, it should be stated clearly.
    ii. If it does not, then the present policy and its implementation require reconsideration and correction.

Request

In light of the above, I respectfully request that the Board and the Ministry:

1. Reopen and reconsider the two refused applications on their merits;
2. Confirm whether an MPRP holder who is lawfully resident and separately authorised to work under a valid Jobsplus Employment Licence falls within Regulation 3(b) of `S.L. 217.17`;
3. If the applications are considered categorically ineligible because of MPRP residence status, **identify the precise statutory provision establishing or authorising that exclusion, including any provision said to exclude the separate worker-based route under S.L. 217.17**; and
4. Issue a reasoned decision addressing the legal distinction between eligibility to apply and the discretionary decision whether an exemption should ultimately be granted;
5. Provide anonymised statistical data, where held or reasonably derivable from existing administrative records, for the relevant academic year showing separately:
    - (a) applications concerning Single Permit holders and their dependants; and
    - (b) applications concerning MPRP/MRVP beneficiaries holding a valid Employment Licence and their dependants;
    - and, for each category, the number of applications received, approved, refused following substantive assessment, and rejected as categorically ineligible.

If the requested anonymised statistical data is not provided, I respectfully request that the reasons for non-disclosure be stated. I reserve the right to bring both the non-disclosure and the reasons given for it to the attention of the Ombudsman, or to rely upon them in any subsequent administrative or legal review concerning the transparency, consistency and fairness of the decision-making process.

Although we were not born in Malta, our whole family now lives here. We study here, we work here, we contribute here, and we are proud to pay our taxes here. Malta welcomed our family warmly and has given us a sense of security, belonging and kindness that we value deeply. It is no longer simply the country in which we reside; it is the place we now call home.

For that reason, I respectfully ask that our position be understood in its proper spirit. **We are not seeking special treatment**. We are asking only to be treated under **the same lawful eligibility framework applicable to other third-country workers**, unless the law itself provides otherwise.

We simply hope for a fair and hopeful path that allows us, through our own work and through the efforts of our children, to continue contributing to Malta and, in our own small way, to help make the country that welcomed us an even better place.

Many thanks for your time and consideration.

Yours faithfully,
Dongcheng (Paul) WANG